

SENATE BILL 2548

By Reeves

AN ACT to amend Tennessee Code Annotated, Title 63;
Title 68, Chapter 11, Part 2 and Chapter 1042 of
the Public Acts of 2024, relative to certified
medical assistants.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 63-19-106, is amended by adding the following as a new subsection:

(e) A physician assistant is authorized to delegate tasks to a certified medical assistant, as described in § 68-11-244, as long as the physician assistant is in collaboration with a licensed physician, pursuant to this section.

SECTION 2. Chapter 1042 of the Public Acts of 2024 is amended by adding the following as a new subsection in SECTION 2:

(i) A physician assistant is authorized to delegate tasks to a certified medical assistant, as described in § 68-11-244, pursuant to a protocol or collaborative agreement with a collaborating physician, pursuant to this section.

SECTION 3. Tennessee Code Annotated, Section 68-11-244(a)(2), is amended by adding ", physician assistant," immediately after "physician" wherever it appears.

SECTION 4. Tennessee Code Annotated, Section 68-11-244(e)(3), is amended by deleting the subdivision and substituting:

(3) Be certified or registered by a recognized certifying body, which includes the following:

- (A) American Medical Technologists (AMT);
- (B) American Association of Medical Assistants (AMMA);
- (C) National Center for Competency Testing (NCCT);

(D) National Healthcareer Association (NHA); or

(E) National Association for Health Professionals (NAHP).

SECTION 5. Tennessee Code Annotated, Section 68-11-244(g), is amended by deleting the subsection and substituting:

(g) An ambulatory outpatient clinic is responsible for training and verifying the competency of a certified medical assistant pursuant to this section, which includes ensuring additional training and validation to administer medications, if necessary.

SECTION 6. Tennessee Code Annotated, Section 68-11-244(i)(1)(A), is amended by adding ", physician assistant," immediately after "nurse".

SECTION 7. Tennessee Code Annotated, Section 68-11-244(i)(1)(D), is amended by adding ", physician assistant," immediately after "physician" wherever it appears.

SECTION 8. Tennessee Code Annotated, Section 68-11-244(i)(1), is amended by adding the following as a new subdivision.

(E)

(i) A delegation of medication administration or other tasks to a certified medical assistant from a physician assistant must be carried out in accordance with the rules adopted by the board of physician's assistants.

(ii) The board of physician's assistants is authorized to promulgate rules related to the administration of vaccines and other tasks that may be delegated by a physician assistant to certified medical assistants under this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 9. Tennessee Code Annotated, Section 68-11-244(i)(2), is amended by deleting the subdivision and substituting:

(2)

(A) In exercising the authority to administer medications pursuant to a physician's, physician assistant's, or licensed nurse's delegation, a certified medical assistant may administer or prepare only those medications that have been ordered by an authorized healthcare provider and are in either:

(i) A single dose, appropriately labelled, ready-to-administer packaging; or

(ii) A multi-dose, appropriately labelled packaging for which a specific dose is ordered and a dose calculation is not required by the certified medical assistant.

(B) The medications that a certified medical assistant may administer or prepare, as described in subdivision (i)(2)(A), include the following categories:

(i) Intramuscular, intradermal, or subcutaneous medications;

(ii) Vaccines;

(iii) Oral, sublingual, and buccal medications;

(iv) Topical medications;

(v) Irrigants;

(vi) Optic medications, excluding injectables;

(vii) Metered hand-held inhalants;

(viii) Unit dose nebulizers;

(ix) Otic medications, excluding injectables;

(x) Nasal medications, excluding injectables;

(xi) Rectal medications;

(xii) Medications prepared by the certified medical assistant for administration by the provider;

(xiii) Urethral, transurethral, or intravesicular medications;

(xiv) Vaginal medications ,excluding injectables; and

(xv) Anesthetic agents, limited to the following:

(a) Transdermal;

(b) Subcutaneous, not to exceed provider's ordered dose
and limited to trunk and extremities, excluding the digits or
genitals; or

(c) Transmucosal.

SECTION 10. Tennessee Code Annotated, Section 68-11-244(i)(3), is amended by
adding ", physician assistant," immediately after "by a physician".

SECTION 11. Tennessee Code Annotated, Section 68-11-244(i)(3), is amended by
adding the following at the end of the subdivision:

A physician assistant shall not delegate any patient care activity that requires the
exercise of physician assistant's judgment in assessing, planning, or altering care based
on the needs of the individual patient.

SECTION 12. Tennessee Code Annotated, Section 68-11-244(j)(8), is amended by
deleting the subdivision.

SECTION 13. Tennessee Code Annotated, Section 68-11-244(j), is amended by adding
the following as new subdivisions:

() Inhaled gases for anesthesia;

() Anesthetic agents, not including the agents described in subdivision
(i)(2)(B)(xv);

() Aesthetic medications, including botulinum toxin, fillers, or chemical peels;

SECTION 14. Tennessee Code Annotated, Section 68-11-244(j), is amended by adding
", physician assistant," immediately after "A physician" and by adding ", physician assistant,"
immediately after "licensed nurse".

SECTION 15. This act takes effect upon becoming a law, the public welfare requiring it.